

A

MEASURE

PASSED BY

The National Assembly of the Church of England

To enable Diocesan Authorities at the request of Parochial Church Councils and with the consent of Queen Anne's Bounty to apply capital moneys in certain cases to the immediate repairs of chancels.
[17th July 1940.]

1. Notwithstanding anything contained in section fifty-two of the Ecclesiastical Dilapidations Measure, 1923, as amended by the Ecclesiastical Dilapidations (Amendment) Measure, 1929, the Diocesan Authority at the request of a Parochial Church Council and with the consent of the Central Authority may at any time after the passing of this Measure apply or agree to apply any part of the capital of any fund received or receivable by them for the purposes of the said section (whether already invested or not) which in the opinion of the Diocesan Authority represented at the date of receipt thereof the cost or part of the cost of immediate repairs to the chancel in respect of the repair whereof the fund was received or is receivable in or towards payment for such repairs: Provided that the fund shall not be thereby reduced below a sum the income whereof will in the opinion of the Diocesan Authority and the Central Authority be sufficient to provide for the insurance of the chancel as required by the said section and sufficient with any other moneys available or likely to be available for that purpose to provide for the cost of future repairs.

Power in certain cases to apply part of capital to repairs.
14 & 15 Geo. 5.
No. 3.
19 & 20 Geo. 5.
No. 3.

No. 3. *Ecclesiastical Dilapidations* 3 & 4 GEO. 6.
(*Chancel Repairs*) Measure, 1940.

Definition. 2. In this Measure the expression "date of receipt" means the date on which the fund was transferred to the Diocesan Authority or in the case of a fund the transfer whereof is deferred on payment of interest in the meantime the date from which the first payment of interest is calculated.

Short title. 3. This Measure may be cited as the Ecclesiastical Dilapidations (Chancel Repairs) Measure, 1940, and shall be construed as one with the above-mentioned Measures, and the above-mentioned Measures and this Measure may be cited together as the Ecclesiastical Dilapidations Measures, 1923 to 1940.

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